

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVIN DAVIS,

Plaintiff,

- against -

THE CITY OF NEW YORK, JOSEPH CANALE,
and JOHN DOES "1-3", The names being
fictitious and identity unknown,

Defendants.
-----X

Index No.

Plaintiff designates
Bronx County as
place of trial.

The basis of the
venue is the
location of occurrence.

S U M M O N S

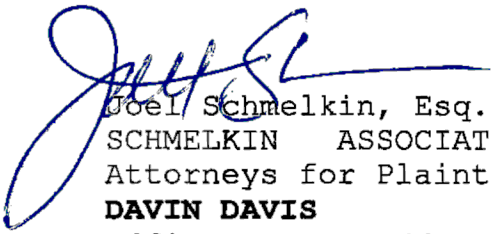
Plaintiff resides at:
560 Balcom Ave., Apt. 7H
Bronx, NY 10465

County of Bronx

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 2, 2020


Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff

DAVIN DAVIS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

THE CITY OF NEW YORK, 100 Church Street, New York, N.Y. 10007
JOSEPH CANALE, c/o PSA7 Precinct, Bronx, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVIN DAVIS,

Index No.

Plaintiff,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, JOSEPH CANALE,
and "JOHN DOES "1-3", the names being,
fictitious and identity unknown,

Defendants.

-----X

Plaintiff, **DAVIN DAVIS**, complaining of the defendants,
by his attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth
and alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT/IDENTIFICATION OF PARTIES

1. That, at all times hereinafter mentioned, and on
November 9, 2019, the plaintiff, **DAVIN DAVIS**, was and still is a
resident of the County of Bronx, City and State of New York.

2. That, at all times hereinafter mentioned, and on
November 9, 2019, the defendant, **THE CITY OF NEW YORK**,
(hereinafter referred to as "**THE CITY**") was and still is a
domestic municipal corporation, duly organized and existing under
and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on
November 9, 2019, the defendant, **JOSEPH CANALE**, (hereinafter
referred to as "**CANALE**"), was and still is a resident of the City

and State of New York.

4. That, at all times hereinafter mentioned, and on November 9, 2019, the defendant, **"JOHN DOES 1-3", the names being fictitious and identity unknown**, (hereinafter referred to as **"DOES"**), were and still are residents of the City and State of New York.

5. That, the plaintiff, **DAVIN DAVIS**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim and Supplemental Notice of Claim were served on January 28, 2020, and on April 21, 2020, respectively, within ninety (90) days of the date that the within causes of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **DAVIN DAVIS**, testified at an oral examination pursuant to the General Municipal Law on November 3, 2020; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

6. That at all times hereinafter mentioned, and on November 9, 2019, plaintiff **DAVIN DAVIS** was present at or near the intersection Of Tiffany Street and Westchester Avenue, in the County of Bronx, City and State of New York.

7. That the plaintiff **DAVIN DAVIS** noticed that an argument occurred inside a lounge located at or near the

aforementioned location.

8. That the plaintiff **DAVIN DAVIS**, along with other individuals, had previously been in the aforementioned lounge, and noticed that there was a fight which occurred on the dance floor thereat.

9. That the plaintiff **DAVIN DAVIS** and other individuals attempted to leave as the fight was escalating.

10. That the plaintiff **DAVIN DAVIS** was looking for a cab to go home.

11. That while looking for a cab, police officers, and/or other agents, servants, and/or employees of the defendant, and/or defendants, were following the plaintiff **DAVIN DAVIS**, for no reason, and without probable cause.

12. That the aforementioned agents, servants, and/or employees, and/or police officer of the defendant and/or defendants, had ordered the plaintiff **DAVIN DAVIS** to go home, and started pushing Plaintiff **DAVIN DAVIS** for no reason, and without probable cause.

13. That the plaintiff **DAVIN DAVIS** was thrown to the ground by the aforementioned defendant, and/or defendants, and was punched, kicked, and beaten without probable cause, without reasonable cause and without justification.

14. That the plaintiff **DAVIN DAVIS** was placed in handcuffs, and put in a police van.

15. That the plaintiff **DAVIN DAVIS** was taken to the PSA7 precinct, by the defendant and/or defendants, and was held under the custody and against his will, without probable cause, without reasonable cause and without justification, by the aforementioned defendant and/or defendants.

16. That the plaintiff **DAVIN DAVIS** was not told why he was being arrested, nor given his "Miranda rights", nor advised of any of his legal rights afforded by the Constitution of the United States of America, and of his other rights under the law.

17. That the plaintiff **DAVIN DAVIS** was placed in a cell, against his will , while under the custody of the defendant and/or defendants herein for a long, and unreasonable period of time, without probable cause, without reasonable cause and without justification.

18. That the plaintiff **DAVIN DAVIS** was given a desk appearance ticket for possession of marijuana and disorderly conduct, and had to later appear in court, whereby charges against him were dismissed, on or about January 31, 2020.

19. That as a result of the foregoing the plaintiff **DAVIN DAVIS** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue as usual and regular activities; and upon

information and belief his injuries are permanent in nature and effect.

AS AND FOR A FIRST CAUSE OF ACTION
(Assault and Battery)

20. That, the plaintiff, **DAVIN DAVIS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

21. That, on November 9, 2019, the plaintiff, **DAVIN DAVIS**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

22. That, the plaintiff, **DAVIN DAVIS**, was assaulted/battered without justification and without cause and without excuse.

23. That, the assault/battery took place at or near the intersection of Tiffany Street and Westchester Avenue, in the County of Bronx, City and State of New York and other locations wherein the plaintiff, **DAVIN DAVIS** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

24. That, at all times hereinafter mentioned and on November 9, 2019, and for sometime prior thereto, defendant, **CANALE**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of

his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, at all times hereinafter mentioned and on November 9, 2019, and for sometime prior thereto, defendant, **DOES**, were New York City police officers, and/or agents, servants and/or employees of The City, working in the scope and course of their employment as New York City Police Officers, and were employed by the defendant, **THE CITY**.

26. That, the aforementioned assault and battery of the plaintiff, **DAVIN DAVIS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

27. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

28. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

29. That, by reason of the foregoing, the plaintiff,

DAVIN DAVIS , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

(Negligent Hiring, Negligent
Training, Negligent
Retention and
Negligent Supervision)

30. That, the plaintiff, **DAVIN DAVIS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 29 with the same force and effect as if hereinafter more fully set forth at length herein.

31. That, all of the aforementioned acts, committed by police officers, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

32. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **CANALE**, were committed due to the negligence,

recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **DOES** were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **CANALE**, who was employed by the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **DOES**, who was employed by the defendant, **THE CITY**.

37. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was

unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

38. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

39. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS** has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

(False Arrest and
False Imprisonment)

40. That the plaintiff, **DAVIN DAVIS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 39 with the same force and effect as if hereinafter more fully set forth at length herein.

41. That, on November 9, 2019, the plaintiff, **DAVIN DAVIS**, was caused to be falsely arrested and falsely imprisoned without probable cause.

42. That, the plaintiff, **DAVIN DAVIS**, was arrested without an arrest warrant.

43. That, the false arrest/false imprisonment took

place at or near the intersection of Tiffany Street and Westchester Avenue, in the County of Bronx, City and State of New York and thereafter continuing at other locations wherein the plaintiff, **DAVIN DAVIS** was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

44. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVIN DAVIS** , was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVIN DAVIS** , was carried out by defendant, **CANALE**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

46. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVIN DAVIS** , was carried out by defendant, **DOES** and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

47. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon

information and belief, his injuries are permanent in nature and effect.

48. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

49. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

(Malicious Prosecution)

50. The plaintiff, **DAVIN DAVIS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 49, with the same force and effect as if hereinafter more fully set forth at length herein.

51. That, the aforementioned false arrest and false imprisonment of the plaintiff, **DAVIN DAVIS**, was caused due to a malicious prosecution of the plaintiff, **DAVIN DAVIS**, without cause, without reasonable cause, and without color of the law.

52. That, the arresting and investigating police, who were police officers, and/or other agents, servants or were other employees of the defendant, **THE CITY OF NEW YORK**, failed to make a

proper and through investigation of the facts, failed to make proper inquiries resulting in the false arrest and false imprisonment of the plaintiff, **DAVIN DAVIS**, was maliciously prosecuted without probable cause, without reasonable cause, and without color of the law.

53. That, upon information and belief, all criminal charges against the plaintiff, **DAVIN DAVIS**, were ultimately dismissed on January 31, 2020.

54. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

55. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others.

56. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

(Violation of Fourth, Fifth and
Fourteenth Amendment Rights)

57. The plaintiff, **DAVIN DAVIS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 56, with the same force and effect as if hereinafter more fully set forth at length herein.

58. That the plaintiff, **DAVIN DAVIS** did not commit any illegal act, nor did the individually named defendants have reason to believe he committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him; maliciously prosecuted and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

59. That at all times hereinafter mentioned, the defendant, **CANALE** was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

60. That at all times hereinafter mentioned, the defendant, **DOES** were employed in their respective capacity by the defendant, **THE CITY** and was acting under the color of

their official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

61. Defendant, **CANALE**, is being sued in his personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendant, **CANALE** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

62. Defendants, **DOES**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants, **DOES** knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

63. The unlawful and illegal conduct of the defendants,

their agents, servants and/or employees and each of them, deprived plaintiff, **DAVIN DAVIS** of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York: The right of plaintiff, **DAVIN DAVIS** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **DAVIN DAVIS** , to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **DAVIN DAVIS** , not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

64. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendant while acting under color of state law and within the scope of his employ.

65. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

66. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

67. That the deprivation of plaintiff, **DAVIN DAVIS's**

Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

68. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

69. That the detaining of plaintiff, **DAVIN DAVIS** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

70. That the deprivation of plaintiff, **DAVIN DAVIS's** Constitutional rights was the result of the defendant, **CANALE's** arrest of the plaintiff **DAVIN DAVIS** without probable cause.

71. That the deprivation of plaintiff, **DAVIN DAVIS's** Constitutional rights was the result of the defendant, **DOES's** arrest of the plaintiff **DAVIN DAVIS** without probable cause.

72. That the deprivation of plaintiff **DAVIN DAVIS's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

73. That the deprivation of plaintiff, **DAVIN DAVIS's** Constitutional rights was the result of the defendant, **CANALE's** use of excessive force.

74. That the deprivation of plaintiff, **DAVIN DAVIS's** Constitutional rights was the result of the defendant, **DOES** use of excessive force.

75. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **DAVIN DAVIS** .

76. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, malicious prosecution due to the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **DAVIN DAVIS** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

77. That, by reason of the foregoing, the plaintiff **DAVIN DAVIS** was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature and effect.

78. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

79. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

(Negligent Infliction
of Emotional Distress)

80. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 79 with the same force and effect as if more fully set forth at length herein.

81. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, **DAVIN DAVIS**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

82. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

83. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the

State of New York.

84. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

85. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

86. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

87. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

88. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION

(Intentional Infliction
of Emotional Distress)

89. That the plaintiff, **DAVIN DAVIS**, repeats,

reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 88 with the same force and effect as if hereinafter more fully set forth at length herein.

90. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which intentionally caused severe emotional distress to plaintiff, **DAVIN DAVIS**. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

91. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

92. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

93. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

94. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine *respondeat superior*.

95. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

96. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

97. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Failure to Intervene)

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. That the defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of the plaintiff, whose constitutional rights

were being violated in their presence by other officers.

100. Defendants failed to intervene to prevent the unlawful conduct described herein.

101. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

102. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

103. Defendants were at all times agents, servants, and employees acting within the scope of their employment by **THE CITY**, which are therefore responsible for their conduct.

104. **THE CITY**, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

105. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

106. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants,

having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

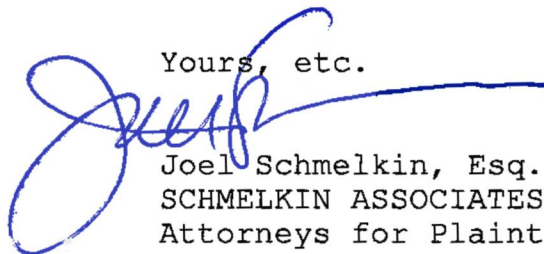
107. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

108. That, by reason of the foregoing, the plaintiff, **DAVIN DAVIS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **DAVIN DAVIS**, demands judgment against the defendants, on the First, Second, Third, Fourth, Fifth, Sixth, Seventh and Eighth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York; together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
December 2, 2020

Yours, etc.



Joel Schmelkin, Esq.
SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiff,
DAVIN DAVIS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

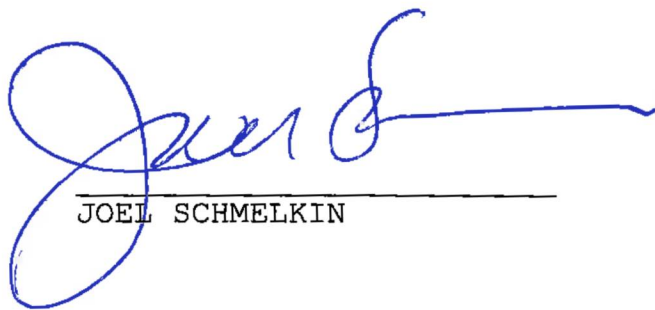
ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York
December 2, 2020



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAVIN DAVIS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, JOSEPH CANALE,
and JOHN DOES "1-3", The names being
fictitious and identity unknown,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Davin Davis
Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR
NEW YORK, N.Y. 10007
TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated: December 2, 2020

Signature

Print Signer's Name

JOEL SCHMELKIN

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. , one of the judges of the within-named Court,
at
on

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, at

M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR